

25TRCV04415 25TRCV04415

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 25TRCV04415 Hearing Date: September 8, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Tuesday,
September 8, 2026 Department M Calendar No.

PROCEEDINGS

Jazib

Shafi Merchant v. Kae Shik Moon, et al.

25TRCV04415

1.

Kae Shik Moon's Motion

for Temporary Stay of All Proceedings Pending Appointment of Guardian Ad Litem and
a Protective Order Staying Discovery and Discovery Related Motions

TENTATIVE RULING

Kae Shik Moon's Motion for

Temporary Stay of All Proceedings Pending Appointment of Guardian Ad Litem and
a Protective Order Staying Discovery and Discovery Related Motions is granted.

Background

Plaintiffs filed the Complaint on December 29, 2025.

Plaintiffs allege the following facts. Plaintiff was involved in a motor

vehicle accident with Defendant Kae Shik Moon.

Motion to Stay

Code Civ. Proc., § 128(a) states:

“(a) Every court shall have the power to do all of the following:

(1) To preserve and enforce order in its immediate presence.

(2) To enforce order in the proceedings before it, or before a person or persons empowered to conduct a judicial investigation under its authority.

(3) To provide for the orderly conduct of proceedings before it, or its officers.

(4) To compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein.

(5) To control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto.

(6) To compel the attendance of persons to testify in an action or proceeding pending therein, in the cases and manner provided in this code.

(7) To administer oaths in an action or proceeding pending therein, and in all other cases where it may be necessary in the exercise of its powers and duties.

(8) To amend and control its process and orders so as to make them conform to law and justice. An appellate court shall not reverse or vacate a duly entered judgment upon an agreement or stipulation of the parties unless the court finds both of the following:

(A) There is no reasonable possibility that the interests of nonparties or the public will be adversely affected by the reversal.

(B) The reasons of the parties for requesting reversal outweigh the erosion of public trust that may result from the nullification of a judgment and the risk that the availability of stipulated reversal will reduce the incentive for pretrial settlement.”

Defendant moves “for an order (1) temporarily staying all proceedings in this matter pending the formal appointment of a professional Guardian Ad Litem, and (2) issuing a protective order staying the enforcement of all outstanding discovery.” (Notice of Motion, p.2, lines 4-7). The motion is made on the grounds that Defendant is 81 years of age and is currently undergoing chemotherapy for gastric cancer. “Defendant requests a temporary stay of the entire action and a protective order halting discovery to allow counsel adequate time to locate an independent professional fiduciary and submit Judicial Council Form CIV-010 for formal appointment.” (Id. at p. 2, lines 13-16).

Plaintiff filed no written opposition to this motion.

Defendant has established good cause for a limited stay to appoint a professional guardian ad litem based on the health of Defendant. The Court notes that Defendant’s first appearance in this action was made by filing this motion on June 2, 2026. The hearing date of this motion is September 8, 2026. This has allowed Plaintiff approximately three months to obtain a professional guardian ad litem. Based on this time frame, the Court will enter a complete stay. However, the Court will set an OSC re: status of appointment of guardian ad litem for approximately a month from this date as the Court does not believe that the retention of a guardian ad litem should not take much longer than three to four months.

Therefore, Defendant’s Motion for Temporary Stay of All Proceedings Pending Appointment of Guardian Ad Litem and a Protective Order Staying Discovery and Discovery Related Motions is granted.

The Court sets an OSC re: status of appointment of guardian ad litem for _____.

Defendant is ordered to give notice of this ruling.